

1. 22CV00409 Char-Dor Realty et al. v. Rainwater Construction, et al.

EVENT: Motion to Be Relieved as Counsel (Rainwater Construction, Inc)

Motion to Be Relieved as Counsel is GRANTED. The Court will sign the proposed order. The order will become effective upon the filing of a proof of service demonstrating Plaintiff was served with the order.

2. 22CV01319 Swigart, Barbara et al v. Westhaven, Inc.

EVENT: Plaintiffs' Motion to Permit Punitive Damages Discovery

Plaintiffs' Motion to Permit Punitive Damages Discovery is DENIED.

The Court rules on Defendant's evidentiary objections as follows. Objection nos. 1 and 2: sustained. Objection no. 3: overruled.

As to objection nos. 1 and 2, it is well settled that unverified pleadings are not evidence. Plaintiffs appear to rely on our previous ruling which conclusively determined liability in favor of Plaintiffs in order to present the FAC as a form of admissible evidence. However, the scope of the order does not include punitive damages. The previous ruling was not intended to deem conclusive allegations in the pleading relating to punitive damages and the conduct that must be proved to establish punitive damages, i.e., malice, oppression, fraud. It was intended to deem conclusive all matters relating to the prima facie elements of the causes of action, excepting damages. Accordingly, the Court is not considering the allegations in the FAC.

Regarding Plaintiffs' objections to the expert declaration of Mr. O'Connor, the objections are sustained in part and overruled in part. To the extent the expert declaration attempts to negate causation in the context of the prima facie elements in the causes of action asserted in the FAC, the declaration will not be considered as those matters are disposed.

However, in the context of punitive damages, it is an individualized punishment and deterrent imposed upon a particular and identified defendant whose malicious or oppressive acts are the proximate cause of the injury sustained by the plaintiff. (*Magallanes v. Superior Court* (1985) 167 Cal.App.3d 878, 887) Thus, although we are not considering the expert declaration in context of prima facie element causation, the declaration can still be considered as to whether the alleged conduct constituting malice, oppression, or fraud was the proximate cause for Plaintiffs' harm for punitive damages purposes.